

STATE OF NEW YORK

2657--A

Cal. No. 100

2025-2026 Regular Sessions

IN ASSEMBLY

January 21, 2025

Introduced by M. of A. OTIS, ROSENTHAL, SIMON, LUNSFORD, SHIMSKY, SIMONE, McDONALD, GRIFFIN, COLTON, SEAWRIGHT, LEVENBERG, REYES, BRONSON, BURDICK, GALLAGHER, CUNNINGHAM, McMAHON, SCHIAVONI, PAULIN, SHRESTHA, CLARK, BRAUNSTEIN, KASSAY, GLICK, WOERNER, STIRPE -- read once and referred to the Committee on Corporations, Authorities and Commissions -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the public authorities law, in relation to establishing the electric landscaping equipment rebate program; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public authorities law is amended by adding a new section 1886 to read as follows:

§ 1886. Electric landscaping equipment rebate program. 1. There is hereby created within the authority an electric landscaping equipment rebate program. The purpose of the program is to reduce greenhouse gas emissions, improve air quality, and reduce noise pollution by promoting the adoption of quieter, zero-emission landscaping equipment.

2. As used in this section:

(a) "Commercial landscaping business" shall mean a sole-proprietorship, firm, limited liability company, partnership, corporation or other business entity whose primary concern involves the care and maintenance of yards, gardens, or other outdoor landscapes for clients, including, but not limited to, lawn care, gardening, and the removal or pruning of trees or shrubs.

(b) "Institutional or commercial applicant" shall mean a commercial landscaping business, or a state agency, state authority, local authority, town, county, village, school district, private school, university, not-for-profit corporation, or other nonprofit organization.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (c) "Eligible lawn care device" shall mean a battery-powered electric
2 lawn care device that is new, has not been used or previously owned, and
3 is purchased or leased from a storefront or online retailer. Eligible
4 lawn care device shall not include corded electric equipment, reel
5 mowers, or tractors used to pull other lawn care devices.

6 (d) "Lawn care device" shall mean any device powered mechanically,
7 which is intended to be used or is actually used for the mowing of
8 grass, the cutting or chipping of trees, tree roots or tree branches,
9 the clearing of snow and ice, the clearing of leaves or other vegetation
10 from lawns, sidewalks, public streets or public highways, and shall
11 include, but not be limited to, such devices as walking and riding lawn
12 mowers and lawn mower attachments, lawn edgers and trimmers, hedge trim-
13 mers, leaf blowers, leaf vacuums, mulchers, chippers, chainsaws, pole
14 saws, augers, cultivators and tillers, snow blowers, and snow shovels,
15 as well as batteries, chargers, and power management equipment for such
16 devices.

17 (e) "Local authority" shall have the same meaning as in subdivision
18 two of section two of this chapter.

19 (f) "State agency" shall mean all state departments, boards, commis-
20 sions, offices or institutions.

21 (g) "State authority" shall have the same meaning as in subdivision
22 one of section two of this chapter.

23 3. The authority shall create a program, within existing appropri-
24 ations, to award rebates at the point of sale to institutional or
25 commercial applicants for eligible lawn care devices in amounts deter-
26 mined by the authority.

27 4. The authority shall determine the rebate eligibility of each appli-
28 cant in accordance with the requirements of this section and rules
29 promulgated by the authority. The total amount of rebates allocated to
30 certified applicants in each fiscal year shall not exceed the amount of
31 funds available for the program in such fiscal year. Rebates shall be
32 allocated to applicants on a first-come, first-served basis, determined
33 by the date the application is received, until all appropriated funds
34 for the fiscal year are expended or the program ends, whichever comes
35 first. The authority shall have authority to reduce eligible lawn care
36 device rebate amounts if the authority determines that funds would
37 otherwise be exhausted prior to the end of a fiscal year.

38 5. The authority shall promulgate rules and regulations to implement
39 and administer the provisions of this section no later than two hundred
40 seventy days after the effective date of this section, including rules
41 and regulations relating to the types of equipment covered under this
42 section and rebate amounts for each equipment type, the forms required
43 to claim a rebate, the required documentation and basis for establishing
44 eligibility for a rebate, procedures and guidelines for claiming a
45 rebate, the collection of economic impact data from applicants, and any
46 other requirements the authority deems necessary. In the course of
47 developing such rules and regulations, the authority shall consult with
48 relevant stakeholders, including commercial landscaping businesses and
49 retailers selling eligible lawn care devices. The authority shall
50 conduct education and outreach, with informational materials made avail-
51 able in at least English and the three most common non-English languages
52 spoken by individuals with limited-English proficiency in the state of
53 New York, based on United States census data, as necessary to inform
54 potential applicants and manufacturers and retailers of eligible lawn
55 care devices about the electric landscaping equipment rebate program.

1 6. The authority shall determine and publish on its website on an
2 ongoing basis the amount of available funding for rebates remaining in
3 each fiscal year.

4 7. No later than two years after the effective date of this section,
5 and annually thereafter on the first of January, the authority shall
6 issue a report to the temporary president of the senate, the speaker of
7 the assembly, the chair of the senate committee on energy and telecommu-
8 nications and the chair of the assembly committee on energy detailing
9 the status of the electric landscaping equipment rebate program. Such
10 report shall include:

11 (a) the amount of funding dedicated by the authority for the program
12 in the preceding year;

13 (b) the amount of eligible purchases for which a rebate was awarded;

14 (c) the amount and geographic distribution of rebates; and

15 (d) any other information the authority deems necessary.

16 § 2. This act shall take effect immediately and shall expire and be
17 deemed repealed January 1, 2036.